PETITION FOR REVIEW OF DENIAL OF PUBLIC RECORDS REQUEST

Submitted to: Attorney General of the State of Oregon **Pursuant to:** ORS 192.411; ORS 192.324(6); ORS 192.407; ORS 192.422

Petitioner: Robert Samuel White P.O. Box 334, Reedsport, Oregon 97467 rsw@rswfire.com — 458-230-1869

Public body: Oregon State Police, Central Records Section 3565 Trelstad Ave SE, Salem, Oregon 97317

Request: PR27478, submitted April 3, 2026 (initiated by email April 2, 2026, which contained a litigation preservation notice) **Related event:** OSP CAD event SP26097765

Date of petition: July 22, 2026

I. WHAT IS BEING PETITIONED

Oregon State Police has not provided a complete response to PR27478 under ORS 192.329(2). One hundred and ten days after the request, the Department has produced a single record, has cited no exemption for anything else, has never stated whether any other responsive record exists, has never ruled on a fee waiver request, and has never acknowledged a preservation notice contained in the request itself.

I ask the Attorney General to order the Department to do what the statute already requires:

1. State, for each category requested on April 3, 2026, whether the Department maintains responsive records.
2. Produce all non-exempt responsive records.
3. Cite the specific statutory exemption claimed for each record or portion withheld.
4. State whether the recorded dispatch communications for March 24, 2026 relating to event SP26097765 still exist, and if they do not, state the date on which they were destroyed, purged, or overwritten and the retention schedule applied.
5. Describe the search conducted on April 3, 2026: the systems queried, by whom, and against what terms.
6. Grant the fee waiver requested on April 3 and again on April 13, 2026, or state in writing that it is denied and on what basis.

I am not asking the Attorney General to characterize the Department's conduct, to make any finding about the underlying event, or to award me anything. Every item above has a form the statute supplies: a date, a name, a description of a search already performed, or a statement that a record does not exist.

II. THE RECORD

The request

On **April 2, 2026 at 1:32 PM**, I submitted a public records request by email to OSP Central Records concerning a law enforcement visit to my residence at the **Siltcoos Work Center** — a locked United States Forest Service facility on restricted federal land, with no public street address, where I serve as the volunteer caretaker. On the Department's form I later entered "82900 Highway 101," the address my Forest Service supervisor had given me; that address was subsequently identified to me as internal-use-only. As set out below, Oregon State Police's own record logs the location not by any street address but by the internal facility name, "SILTCOOS WORK CENTER."

That email contained, in its own body, a litigation preservation notice:

> *"You are hereby on notice to preserve all records, communications, and documentation related to the March 24, 2026 visit to 82900 Highway 101, Florence, Oregon 97439, including but not limited to all records responsive to this request. Destruction or alteration of any such records may constitute spoliation and will be treated accordingly."*

On **April 2 at 2:11 PM**, Records Request Assistant Abigail Saalfeld replied directing me to the Department's online records request form.

On **April 3 at 8:26 AM**, I responded: "Thank you for the instructions. I will complete the form today. Please acknowledge receipt of my preservation notice dated yesterday."

I completed and signed the form the same day.

What the form contained

The Department's form includes a section captioned **Incident Information**, described on the form as: "Use this section to request records related to an incident OSP investigated or a citation issued by OSP."

I completed it in full:

Field	Value I provided
Date of Incident	3/24/2026

Field	Value I provided
Time of Incident	9:00–10:15 AM
Address of Incident	82900 Highway 101 (the address provided to me by my USFS supervisor; later identified as internal-use-only — the facility has no public street address)
City of Incident	Florence
County	Lane County
License Plate #	731 QRV
Persons Involved	Robert Samuel White, DOB 4/11/1977
Persons Involved	[USFS Special Agent] U.S. Forest Service Law Enforcement & Investigations
Persons Involved	Two unidentified Oregon State Police officers

Under **Requested Records**, I asked for:

- The names, badge numbers, and unit assignments of all Oregon State Police officers present.
- All communications related to the planning, authorization, or coordination of this visit.
- All communications referencing my name, my online activity, or the domain oprdvolunteerabuse.org.
- Any incident reports, case files, or after-action documentation.
- All communications between any OSP officer and U.S. Forest Service Special Agent Matthew or any Oregon Parks and Recreation Department employee in connection with this visit.

Under **Additional Comments**, I stated that I had issued a litigation preservation notice dated April 2, 2026 and requested acknowledgment of it; that I requested a fee waiver on public interest grounds; and that I was not seeking the information for commercial purposes.

The form's own closing text reads: **"Please allow up to 30 days for your request to be processed."**

April 3: two documents, same day, in conflict

The Department issued **two** documents on April 3, 2026.

The acknowledgment, REF# PR27478, sent at 10:12 AM, states:

> *"Your records request was received on 4/3/2026. **A search will be conducted** to determine if OSP is the custodian of the requested record(s). You will receive an appropriate response or an estimate of fees as soon as practicable. The average processing time is two to three weeks."*

Later the same day, Administrative Specialist Marni L. Carlson sent a two-sentence letter on Department letterhead:

> *"This is in response to the above referenced request, which Oregon State Police received on April 3, 2026.* ***The Department has conducted a search which identified no records responsive to your request."***

The letter cites no exemption. It states no fee. It provides no notice of review rights. It does not address the preservation notice or the fee waiver request.

One document says a search will be conducted. The other says a search was conducted and found nothing. Both are dated April 3, 2026, and both issued from the Central Records Section.

April 3, 5:32 PM: I asked how the search was done

Fifty-seven minutes after Ms. Carlson's letter, I wrote to her directly and asked five questions:

1. What records systems were searched in response to this request?
2. **Were dispatch logs for March 24, 2026 searched?**
3. Were vehicle activity records or motor pool logs for plate 731 QRV searched?
4. Were officer duty logs or activity reports for March 24, 2026 searched?
5. Were any records located and withheld rather than produced? If so, please identify the specific statutory exemption claimed for each withheld record.

I noted that I had video documentation of the visit, that a U.S. Forest Service Special Agent present at the same visit had been confirmed by name by Forest Service supervisory staff, and that multiple Forest Service employees had confirmed in writing that state police were present.

None of those five questions has ever been answered. One hundred and ten days have passed.

April 13: the record that did not exist, printed at 1:07 PM

Ten days after the no-records finding, and nine days after I asked how the search was conducted, a CAD record for the March 24 event was printed inside the Central Records Section. The released document carries the Department's own generation stamp on every page: **"Printed: 04/13/2026 13:07 by A89920."**

At **5:11 PM on April 13**, Ms. Carlson wrote: "Please see attached response to your Oregon State Police records request. **Only check and money order are accepted.**"

The record existed. It carried a $12.50 fee. It had been printed inside the Central Records Section approximately four hours before that email, ten days after the Department told me no responsive record existed.

April 13–14: the fee waiver

At **5:52 PM on April 13** — forty-one minutes later — I submitted a written fee waiver request stating public interest, absence of commercial purpose, and inability to pay, and asking that if denied, the Department provide a written explanation and inform me of any appeal rights.

At **6:03 PM**, I supplemented it:

> *"I am a volunteer caretaker living in an RV on federal land. I have no regular income. I survive through volunteer service in exchange for a place to park my RV. I do not receive wages, salary, or compensation of any kind for this work."*

and:

> *"The CAD record you have identified will be published in full on this archive... This is not a personal request — it is a public records request that will result in public disclosure."*

At **8:28 AM on April 14**, the Department responded in full:

> *"Good morning, Robert ~ Attached you will find a fee waiver. Have a great day!"*

The attachment was a scanned PDF to be printed, completed by hand, signed, and mailed.

That is the Department's entire response to a written waiver request asserting indigence. It was not granted. It was not denied. No explanation was given. No review rights were stated. The Department answered a statement of indigence from a man living in an RV behind a locked gate with no street address by requiring a printer, ink, paper, an envelope, a stamp, and a mailbox.

The Department has never ruled on the fee waiver.

April 14 – July 14: three months

Nothing was produced. Nothing was denied. No estimate of completion was given. The Department's own acknowledgment had promised "an appropriate response or an estimate of fees as soon as practicable," and its own form had said thirty days.

On **July 9**, I wrote to Ms. Carlson and set out the sequence, asked that my April 13 correspondence be accepted as the waiver request, and asked in the alternative for "a written statement of the specific authority requiring a printed and mailed form, and the rule that forecloses electronic submission." No such statement was ever provided.

July 14: released in full, free — under a second, different receipt date

On **July 14, 2026 at 11:25 AM**, Records Request Unit Senior Admin and Legal Compliance Specialist Micah Hubbard released the CAD record for event SP26097765. It was delivered through a secure

download link rather than as an attachment; the files provided were `PR27478.pdf` and `SP26097765 CAD.pdf`.

The release was accompanied by a cover letter on Department letterhead. That letter states the request was **"received on 04/13/2026"** — a receipt date the Department had itself given, in its April 3 letter, as **April 3, 2026**. The same request, PR27478, now bears two different receipt dates in the Department's own correspondence.

The record was released **in full**. It was reviewed for exempt material as certified by the Department's own legal compliance specialist: **"The document we are releasing has been reviewed for exempt material, with none being identified." No fee was charged.**

That production establishes three things the Department had previously denied or left unresolved:

1. A responsive record existed on April 3, 2026, when the Department stated a search had identified none.
2. No exemption applied to any part of it — as certified by the Department's own legal compliance specialist.
3. No fee was required, which the Department demonstrated by producing the record without one, after three months of conditioning production on a $12.50 payment and a mailed paper form.

July 14 – present: the questions the record raises, and the records it points to

On **July 14**, I wrote asking that the questions raised by the CAD itself be answered by the responding unit's supervisor or the appropriate OSP official rather than by the records section, expressly so as not to put Ms. Hubbard in the position of answering for conduct that was not hers. Those questions concern the source of my date of birth in the record; the source of the location "SILTCOOS WORK CENTER"; the appearance of my name in the "Caller" field on an event logged "Officer Initiated"; the meaning of the comment "FOR THE FOREST SERVICE // FOLLOWUP INTERVIEW W/ ROBERT WHITE"; the origin point and travel time; and the identity of other personnel present.

On **July 15**, I asked who is DPSST #48454, the individual the released record identifies as having created the event and authored its comment, and I identified that number as Oregon State Police dispatcher **Tawny Woodward**. I also wrote separately to establish that the record the Department produced points to further responsive records it did not produce: a dispatcher records an event; she does not originate it. The information the dispatcher entered — my name, my date of birth, the facility location, and the stated purpose — was conveyed to her by someone, and that communication is itself a record responsive to my April 3 request. In the same letter I requested the recorded dispatch communications for March 24, 2026 and the CAD audit trail data for event SP26097765. I also restated the preservation notice and the outstanding requested categories.

On **July 16**, I wrote to correct my own request: the facility has no street address, is referenced internally as "Siltcoos Work Center," and may appear under other internal variants; I asked that any search account for that.

On **July 17**, I asked the Department, in writing, to state whether the recorded dispatch communications and CAD audit trail still exist, what retention schedule applies, and whether any responsive record had been destroyed since April 2 — and I corrected my own statutory citation (below).

On **July 19**, in my final correspondence before this petition, I restated the request for the March 24 recordings and noted that the license plate I recorded, Oregon 731 QRV, does not correspond to the single unit the CAD names.

No response to any of it.

III. WHAT THE PRODUCED RECORD SHOWS

The Department's own record, SP26097765, released in full with no exemption claimed and bearing the generation stamp "Printed: 04/13/2026 13:07 by A89920," states:

- Event type: **"No Call Type Selected"**
- Priority: **Low**
- Source: **"Officer Initiated"**
- Final disposition: **"No Action Taken"**
- Unit type dispatched: **Criminal**
- My role in the event: **"Person: WHITE, ROBERT — Role: Other"**
- Caller field: **"WHITE, ROBERT"** — on an event simultaneously logged as officer-initiated
- Created, dispatched, and en route at the same instant — **08:41:32**. Arrival: **09:50:02**. Closed: **10:18:42**. Approximately sixty-nine minutes of travel to the site.
- Primary unit: **Hyde, Jake (DPSST #56397), unit 9452**
- Event created and comment authored by: **DPSST #48454** — identified by petitioner as OSP dispatcher Tawny Woodward
- Event comment, entered at 08:41:32 — **before the unit departed**: **"FOR THE FOREST SERVICE // FOLLOWUP INTERVIEW W/ ROBERT WHITE 04-11-1977."**
- Dispatch address: **"SILTCOOS WORK CENTER, OR"** — with the county, cross street, common name, beat, region, and coordinate fields all **blank**. The Department's own record assigns the event no street address and no county; the only locator is the internal facility name.
- Person record for me: date of birth **04/11/1977** filled in; every other descriptive field — eye color, hair color, height, weight, race, sex, address — **blank**.

Three features of that record are directly relevant to this petition.

First, the record is a record of communications. A dispatch event is created because information is conveyed to a dispatcher. A unit is assigned. The comment — naming the Forest Service, the purpose, me, and my date of birth — was authored by a dispatcher at 08:41:32, meaning it was conveyed to her by someone before that moment. The timestamps in the CAD are the index to communications that necessarily occurred. The Department produced the log of the event and did not produce, identify, or claim an exemption over the communications the log records.

Second, the record is incomplete on its face as to the officers present. The CAD names one unit — Trooper Hyde, unit 9452. Two Oregon State Police officers were at my door, and the Oregon plate I recorded on video of their departure, 731 QRV, appears nowhere in the released record and does not correspond to the single unit named. At least one additional Oregon State Police vehicle, and its officer, were present and are undocumented in the only record produced.

Third, the Department possessed my date of birth before I gave it to them. My date of birth appears inside the officer-initiated comment, authored March 24, 2026. I first provided my date of birth to the Department on the form I submitted **April 3, 2026** — ten days later. Whatever the source of that information was, it was not me.

IV. GROUNDS FOR THE PETITION

Count 1 — The response is incomplete under ORS 192.329(2)

ORS 192.329(2) provides that a public body's response is complete when it provides access to or copies of all requested records within its possession or custody that it does not assert are exempt; identifies any records withheld and the specific exemption claimed for each; or states in writing that it is not the custodian.

PR27478 requested five categories. One record — the CAD event log — has since been produced. As to the balance, the Department has done none of the three things the statute permits. It has not produced. It has not claimed an exemption. It has not stated that no records exist.

The requested categories that remain outstanding are:

1. The names, badge numbers, and unit assignments of all Oregon State Police officers present. The CAD names one unit. Two Oregon State Police officers were at my door. Oregon plate 731 QRV — visible on my recording of their departure and recorded in the U.S. Forest Service incident report I filed March 27, 2026 — is not the unit the CAD names and appears nowhere in the released record.
2. All communications relating to the planning, authorization, or coordination of the visit — including the communication by which my name, my date of birth, the location, and the stated

purpose were conveyed to the dispatcher who created the event (DPSST #48454), and all recorded radio or telephone traffic on March 24, 2026 relating to event SP26097765.

3. All communications referencing my name, my online activity, or oprdvolunteerabuse.org.
4. Any incident reports, case files, or after-action documentation.
5. All communications between any OSP officer and [USFS Special Agent] or any OPRD employee in connection with the visit.

In addition, the Department's own production has placed one further record at issue: the CAD audit trail data for event SP26097765 — entry, modification, and access logs — which the produced record necessarily implicates and which I requested in writing on July 15, 2026.

A request does not become complete by remaining open. One hundred and ten days without a disposition as to the categories that remain is a constructive denial.

Count 2 — The April 3 search was not adequate, and the Department will not describe it

The Department's acknowledgment states a search **will be** conducted. Its response the same day states a search **was** conducted and found nothing. Ten days later a responsive record printed inside the same section, bearing the stamp "Printed: 04/13/2026 13:07 by A89920."

I gave the Department the date, the time, the address, the county, the license plate, and my own date of birth, in its own required fields, under a section its form designates for incidents OSP investigated. A query against any of those fields returns event SP26097765.

On April 3 I asked, specifically, whether dispatch logs for March 24, 2026 had been searched. That question has never been answered. The record that later surfaced is a dispatch log.

The Department's own correspondence now carries two different receipt dates for this one request — April 3 in its first letter, April 13 in its release letter. Where the public body will not describe the search, where its subsequent production contradicts the "no records" result, and where its own records do not agree on when the request was received, the adequacy of the search is squarely at issue.

Count 3 — No exemption has been cited for anything

The Department has never claimed a single statutory exemption over any record in this matter. Its own legal compliance specialist reviewed the one record it produced and identified none, certifying that the document was "reviewed for exempt material, with none being identified."

Where records are withheld, ORS 192.329(2)(c) requires identification of the specific exemption for each. The Department cannot withhold the remaining categories by silence.

Count 4 — Constructive denial of the fee waiver (ORS 192.324(6))

ORS 192.324(5) permits fee waiver or reduction where making the record available primarily benefits the general public. ORS 192.324(6) makes an unreasonable denial of a fee waiver petitionable to the Attorney General in the same manner as a denial of inspection, with the same authority.

I requested a waiver on April 3 in the request itself. I requested it again on April 13, in writing, on stated grounds of public interest, absence of commercial purpose, and indigence. I asked that any denial be explained in writing with notice of appeal rights.

The Department's response was to send a form to be printed and mailed. It has never granted the waiver. It has never denied it. It has never explained anything.

A waiver request that is neither granted nor denied, and that is answered instead with a paper barrier that the requester has stated on the record he cannot clear, is an unreasonable denial in substance. The Department's own conduct on July 14 — producing the record in full at no charge — establishes that no fee was ever required.

I renew the request here.

Count 5 — Undue delay (ORS 192.407)

The Department's acknowledgment stated an average processing time of two to three weeks. Its form stated thirty days. One hundred and ten days have elapsed. The requested categories remain without any disposition, and no estimated date of completion has ever been provided.

ORS 192.407 authorizes an order requiring disclosure within seven days, a $200 penalty where the public body responded with undue delay or failed to respond, and a fee waiver or reduction on the same finding.

Count 6 — The preservation notice, and the status of the dispatch audio

The preservation notice was served on April 2, 2026, in the body of the request itself. I asked for acknowledgment on April 3, 2026. I restated the notice on July 15, 2026 and asked again on July 17, 2026. I have never received acknowledgment that the notice was received, or any indication that it was distributed to the custodians of the records it covers.

The recorded dispatch communications for March 24, 2026 are subject to a retention schedule. They are now nearly four months old. The Department has never stated whether they exist.

I do not ask the Attorney General to make any finding about spoliation. I ask for an order requiring the Department to state, in writing, whether these records still exist; what retention schedule applies; and, if any responsive record has been destroyed, purged, overwritten, or allowed to age off a schedule since April 2, 2026, what record and on what date.

A statement that a record no longer exists is a complete and adequate answer to this count. What is not available under the statute is silence.

V. A CORRECTION I MAKE ON MY OWN INITIATIVE

In correspondence with the Department on April 3, 2026 and thereafter, I cited ORS 192.401 and ORS 192.415 as the review provisions applicable to this matter. Both citations were wrong. Oregon State Police is a state agency, and review of a state agency's denial lies with the Attorney General under ORS 192.411; ORS 192.415 is the district attorney route for public bodies that are not state agencies.

I identified the error myself and corrected it in writing to the Department on July 17, 2026, before it was raised by anyone. I state it here for the same reason.

VI. RELIEF REQUESTED

I ask the Attorney General to order Oregon State Police to:

1. **State, for each category identified in Count 1**, whether the Department maintains responsive records.
2. **Produce** all non-exempt responsive records, including all communications by which the information in event SP26097765 — my name, my date of birth, the facility location, and the stated purpose — was conveyed to the dispatcher who created the event, and all recorded radio or telephone traffic on March 24, 2026 relating to event SP26097765.
3. **Cite the specific statutory exemption** claimed for each record or portion withheld.
4. **State whether the recorded dispatch communications for March 24, 2026 relating to event SP26097765 exist**; what retention schedule applies to them; and if any responsive record has been destroyed since April 2, 2026, identify what and when.
5. **Describe the search conducted on April 3, 2026** — systems queried, by whom, against what terms — and answer the five questions posed to Ms. Carlson on April 3, 2026.
6. **Confirm the identity and assignment of DPSST #48454**, whose number appears in a record the Department released in full with no exempt material identified, and produce the communication by which the event was conveyed to that individual.
7. **Grant the fee waiver**, or deny it in writing with the basis stated.
8. **Impose the penalty available under ORS 192.407** if the Attorney General determines the Department responded with undue delay or failed to respond.

VII. EXHIBITS

#	Document	Date
1	Original request email to OSP Central Records, containing preservation notice	April 2, 2026
2	Saalfeld reply directing petitioner to Department form	April 2, 2026
3	Petitioner's reply requesting acknowledgment of preservation notice	April 3, 2026
4	Completed and signed OSP Records Request form	April 3, 2026
5	Department acknowledgment, REF# PR27478 ("A search will be conducted")	April 3, 2026
6	Carlson response letter ("The Department has conducted a search which identified no records")	April 3, 2026
7	Petitioner's five questions regarding the search	April 3, 2026
8	Carlson email and letter — record exists, $12.50, check or money order only	April 13, 2026
9	Petitioner's fee waiver request	April 13, 2026
10	Petitioner's supplemental fee waiver request asserting indigence	April 13, 2026
11	Carlson reply and scanned fee waiver form to print and mail	April 14, 2026
12	Petitioner's letter setting out the sequence and renewing the waiver request	July 9, 2026
13	Hubbard production email and secure transfer record	July 14, 2026
14	OSP release cover letter ("reviewed for exempt material, with none being identified")	July 14, 2026
15	**OSP CAD record SP26097765**, released in full, no exempt material identified	July 14, 2026
16	Petitioner's questions to the responding unit's supervisor	July 14, 2026
17	Petitioner's request for the identity of DPSST #48454	July 15, 2026
18	Petitioner's letter on the unproduced dispatch communications and CAD audit trail	July 15, 2026
19	Petitioner's letter restating preservation notice and outstanding categories	July 15, 2026
20	Petitioner's correction regarding facility naming	July 16, 2026
21	Petitioner's preservation-status request (retention questions)	July 17, 2026
22	Petitioner's correction of statutory citation (192.411, not 192.415)	July 17, 2026
23	Petitioner's final correspondence before AG petition (dispatch recordings; plate 731 QRV)	July 19, 2026
24	U.S. Forest Service Host/Caretaker Incident Report, recording plate 731 QRV	March 27, 2026
25	Confirmation of [USFS Special Agent] by Patrol Captain Felicia Sloan	March 30, 2026

VIII. STATEMENT

I am not asking the Attorney General to find that anyone did anything wrong. I am asking the Attorney General to require Oregon State Police to answer a public records request.

The Department told me no records existed. Ten days later it printed one. It charged me for it, then required a paper form to escape the charge, then produced it free three months later with no exemption claimed and no fee owed. It has never described the search. It has never answered whether the dispatch audio still exists. It has never acknowledged the preservation notice. It has never ruled on the waiver.

Every one of those is a thing the statute already required it to do.

Respectfully submitted,

Robert Samuel White P.O. Box 334 Reedsport, Oregon 97467 rsw@rswfire.com 458-230-1869